Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 516

RESOLUTION REQUESTING HIS EXCELLENCY PRESIDENT FERDINAND "BONGBONG" R. MARCOS, JR., THROUGH THE JUDICIAL AND BAR COUNCIL, TO APPOINT JUDGES IN VACANT SHARI'AH DISTRICT COURTS ESTABLISHED UNDER PRESIDENTIAL DECREE BO. 1083, OTHERWISE KNOWN AS THE "CODE OF MUSLIM PERSONAL LAWS OF THE PHILIPPINES"

WHEREAS, Section 11, Article II of the 1987 Philippine Constitution provides that the State values the dignity of every human person and guarantees full respect for human rights;

WHEREAS, Section 26 of the same article categorically states that the State shall guarantee equal access to opportunities for public service;

WHEREAS, Paragraphs 1 and 5 of Section 8, Article VIII of the Constitution provide that:

1. A Judicial and Bar Council is hereby created under the supervision of the Supreme Court composed of the Chief Justice as *ex officio* Chairman, the Secretary of Justice, and a representative of the Congress as *ex officio* Members, a representative of the Integrated Bar, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector; and

5. The Council shall have the principal function of recommending appointees to the Judiciary;

WHEREAS, Paragraph 6, Section 5, Article VIII of the Constitution provides that the Supreme Court has the power to appoint all officials and employees of the Judiciary in accordance with the Civil Service Law;

WHEREAS, Section 9, Article VIII of the Constitution provides that the Members of the Supreme Court and judges of lower courts shall be appointed by the President from the list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation;

WHEREAS, Article 137, Title I, Book IV of Presidential Decree No. 1083, or the *"Code of Muslim Personal Laws of the Philippines"*, provides that there are hereby created as part of the judicial system, courts of limited jurisdiction, to be known respectively as Shari'ah District Courts and Shari'ah Circuit Courts, which shall exercise powers and functions in accordance with this Title. Shari'ah courts and the personnel thereof shall be subject to the administrative supervision of the Supreme Court;

WHEREAS, Article 138, Tile I, Book IV of the same Act provides for the constitution of five (5) Shari'ah Judicial Districts, each to have one (1) Shari'ah District Court presided over by one (1) judge, as follows:

(a) The First Shari'ah District shall comprise the Province of Sulu;

(b) The Second Shari'ah District, the Province of Tawi-Tawi;

(c) The Third Shari'ah District, the Province of Basilan, Zamboanga del Norte, and Zamboanga del Sur, and the Cities of Dipolog, Pagadian and Zamboanga;

(d) The Fourth Shari'ah District, the provinces of Lanao del Norte and Lanao del Sur, and the Cities of Iligan and Marawi; and

(e) The Fifth Shari'ah District, the Provinces of Maguindanao, North Cotabato and Sultan Kudarat, and the City of Cotabato.

WHEREAS, Article 139 of the same law provides that the judicial function in the Shari'ah District Courts shall be vested in the Shari'ah District Judges to be appointed by the President of the Philippines;

WHEREAS, Section 1, Article X of Republic Act No. 11054, or the *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, provides that the Bangsamoro justice system shall be administered in accordance with the unique cultural and historical heritage of the Bangsamoro. The dispensation of justice in the Bangsamoro Autonomous Region shall be in consonance with the Constitution, Shari'ah, traditional or tribal laws, and other relevant laws;

WHEREAS, the Judicial and Bar Council's (JBC's) primary task is to recommend appointees to the Judiciary and the Office of the Ombudsman for the President's perusal, aiming to enhance the quality of the search, screening, and selection process, as well as insulate the process from undue influence of any kind;

WHEREAS, based on the records of the JBC as of June 2021, only two (2) out of five (5) Shari'ah District Courts (SDCs) are presided over by a Judge, namely, the 4th SDC covering the provinces of Lanao del Norte and Lanao del Sur, and the cities of Iligan and Marawi; and the 5th SDC covering the Provinces of Maguindanao, now Maguindanao del Norte and Maguindanao del Sur, North Cotabato, and Sultan Kudarat, and the City of Cotabato;

WHEREAS, the abovementioned list also indicates that both the 4th and 5th SDCs are presided by one judge, indicating therein that the judge is on an acting capacity as Presiding Judge over the 5th SDC;

WHEREAS, as of today, the official website of the Supreme Court (SC) shows that the Presiding Judges for 1st SDC, 2nd SDC; 3rd SDC; and 5th SDC, are all vacant;

WHEREAS, the existence of these Shari'ah Courts, along with their respective jurisdictions, is essential to the enforcement of the legal system of Filipino Muslims geared towards the attainment of a peaceful, systematic, and orderly life among them at pace with the aim to strengthen cultural communities in the country in the context of their respective parochial ways of life to bring about desirable results enhancing national solidarity and social justice;

WHEREAS, the perennial insufficiency of appointed Shari'ah presiding judges before our Shariah District Courts to try and hear judicial cases would result in the clogging of court dockets, which can eventually hinder the effective and efficient administration of justice in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM);

WHEREAS, when legal redress is available but is not forthcoming in a timely and adequate fashion due to the unavailability of a decision-maker, is essentially the same as the lack of redress altogether where a party to a case is entitled to a speedy hearing before a proper judge expected to expedite the legal system;

WHEREAS, if this setup is continuously left unattended by the JBC, it can further result in more aggravated conflict between litigating parties, since the injured party, with little hope for case resolution, may resort to extrajudicial means to satisfy their respective claims and will inevitably transpire and give rise to more complicated and/or complex situations;

WHEREAS, as the interim government of the Bangsamoro, the Bangsamoro Transition Authority (BTA) Parliament must guarantee every Bangsamoro or Muslim Filipino the enjoyment of his or her constitutional rights as enshrined in the Constitution and other pertinent laws:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To request his excellency President Ferdinand *"Bongbong"* R. Marcos, Jr., through the Judicial and Bar Council, to appoint judges in vacant Shari'ah District Courts established under Presidential Decree No. 1083, otherwise known as the *"Code of Muslim Personal Laws of the Philippines."*

RESOLVED, FURTHER, To furnish a copy of this Resolution, to the Office of the President of the Philippines and to the JBC for their information and appropriate actions.

ADOPTED, *Rajab* 23, 1446/January 23, 2025.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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